



ALLIED ALLIED WORLD SURPLUS LINES INSURANCE COMPANY

WORLD
225 Franklin Street, Boston, MA 02110 • Tel (857) 288-6000 • Fax (617) 556-8060

**FORCEFIELD SM
PRIVATE COMPANY
RENEWAL APPLICATION FOR
MANAGEMENT LIABILITY PACKAGE POLICY**

THE FOLLOWING NOTICES ARE APPLICABLE TO ALL PROPOSED COVERAGE, EXCEPT THE CRIME AND THE KIDNAP AND RANSOM/EXTORTION COVERAGE.

THE INSURANCE FOR WHICH THIS APPLICATION IS SUBMITTED, IS GENERALLY LIMITED TO COVERAGE FOR ONLY THOSE CLAIMS THAT ARE FIRST MADE AGAINST THE INSURED DURING THE POLICY PERIOD AND REPORTED IN WRITING TO THE INSURER PURSUANT TO THE TERMS HEREIN.

THE LIMIT OF LIABILITY TO PAY JUDGMENTS OR SETTLEMENTS WILL BE REDUCED AND MAY BE EXHAUSTED BY PAYMENT OF DEFENSE COSTS. DEFENSE COSTS WILL BE APPLIED AGAINST THE RETENTION AMOUNT.

THE INSURER DOES NOT ASSUME THE DUTY TO DEFEND ANY CLAIM UNDER THE POLICY; HOWEVER, IF THE INSURED TENDERS THE DEFENSE OF ANY CLAIM TO THE INSURER IN ACCORDANCE WITH THE TERMS THEREIN, THE INSURER SHALL ASSUME THE DEFENSE OF SUCH CLAIM.

THIS APPLICATION MUST BE COMPLETED IN FULL. PLEASE READ THE ENTIRE APPLICATION CAREFULLY, BEFORE SIGNING.

1. Name of Applicant: Apex Surface Services, Inc.
2. If the Applicant has had a change of address, please provide here: No change
3. Please provide the name and contact info (Phone and Email) of the individual most likely to utilize Allied World's Risk Management services: Ethan Mercer / (919) 555-4821 / emercer@apexsurface.com
4. In the past twelve (12) months or in the next twelve (12) months, is the applicant currently contemplating or anticipating any mergers, acquisitions or consolidations, whether completed or attempted?
(If "Yes" to any of the above please provide complete details in an attachment.) ☐ Yes ☒ No
5. Has the Applicant or any of its Subsidiaries had any private placement or other offering of securities within the last twelve (12) months, or anticipate having any private placements or other offering of securities within the next twelve (12) months? ☐ Yes ☒ No
6. Does the Applicant participate in any crowd funding activities?
(If "Yes," please provide complete details in an attachment.) ☐ Yes ☒ No
7. Has the company participated in or planning to participate in any offerings or capital raise involving Crypto Currency, an ICO (Initial Coin Offering) or other token or alternative means of financing? ☐ Yes ☒ No
8. Have there been any changes in ownership in the past twelve (12) months?
(If "Yes," please provide complete details in an attachment.) ☐ Yes ☒ No

9. Has the Applicant experienced changes to its Board of Directors or to its Key Executives over the past year? ☒ Yes ☐ No
(If "Yes," please provide complete details.)
A new independent director, Nolan Mercer, has been added to the Board of Directors.

10. Enter the TOTAL number of employees in the boxes below (including all Subsidiaries).
Note: Seasonal, Temporary and Leased Employees to be included as Part-Time employees

Employee Count	Full Time	Part Time	Independent Contractors	Employed Lawyers
Total	1,411	16	0	0
Inclusive of Total - North Carolina	672	9	0	0
Union	0	0	0	0
Foreign	0	0	0	0

11. Total percentage of employees with annual compensation greater than \$100,000: 18.7%

12. Is the Applicant or any of its Subsidiaries in the past twelve (12) months or does the Applicant or any of its Subsidiaries contemplate undergoing during the next twelve (12) months, any employee layoff or early retirements programs (including ones resulting from any type of company restructuring, or office, plant or store closing)? ☒ Yes ☐ No
(If "Yes", please provide details regarding their use of outside counsel, severance packages offered, releases signed and number of layoffs.)
Reduction in force completed in January 2025; severance offered, releases signed, no legal action; 48 employees impacted.

13. Does the insured collect any data using biometrics? (ie. Finger printing, retina scan or other) ☒ Yes ☐ No
(If "Yes", please provide details regarding what is being done to comply with any regulations around the collection and storage of this information.)
Insured maintains employee notice, consent, retention, and disposal controls for biometric access systems.

14. Given the heightened scrutiny around contemporary issues like #MeToo, paternity, safety and better HR practices in general, has the insured:
Instituted a zero tolerance policy? ☒ Yes ☐ No
Reviewed their policies to make sure they are up to date? ☒ Yes ☐ No
Created and communicated a clear process for reporting and handling of matters? ☒ Yes ☐ No
Have a clear and communicated plan around investigating matters promptly when received? ☒ Yes ☐ No

15. Please provide the following information for each Plan to be covered:

Plan Name and Plan Number	Type of Plan*	Number of Participants	Plan Assets	Plan Status**
Apex Surface Services ESOP Plan No. 001	ESOP	1,227	\$246,980,000	Active
Apex Surface Services 401(k) Plan No. 002	DC	1,188	\$64,850,000	Active

* Welfare (W), Defined Benefit (DB), Defined Contribution (DC), ESOP (ESOP), Other (O)

** Active (A), Merged (M), Sold (S), Terminated (T), Frozen (F)

16. In the past twelve (12) months or in the next twelve (12) months did the applicant contemplate any Plan benefits being modified, suspended, merging or dissolving? ☐ Yes ☒ No

17. List any planned travel in the next twelve (12) months outside the United States or Canada:

Country	City	Number of Insured Persons Traveling	Frequency	Duration
Ireland	Dublin	3	Quarterly	5 days
Germany	Munich	2	Semiannual	4 days

REPRESENTATIONS OF AND NOTICES TO THE APPLICANT

The undersigned authorized representative of the Applicant declares that the statements set forth herein are true, and reasonable effort has been made to obtain sufficient information from all persons proposed for this insurance to facilitate the accurate completion of the Application.

The undersigned authorized representative agrees that if the information supplied on this Application changes between the date of this Application and the effective date of the insurance, he/she will immediately notify the Insurer of such changes, and the Insurer may withdraw or modify any outstanding quotations or agreement to bind insurance.

The submission of this Application by the Applicant to the Insurer or signing of this Application by or on behalf of the Applicant does not obligate the Insurer to issue the insurance requested. It is agreed that this Application shall be the basis of the contract if a policy is issued.

ALL WRITTEN STATEMENTS AND MATERIALS FURNISHED TO THE INSURER IN CONJUNCTION WITH THIS APPLICATION ARE HEREBY INCORPORATED BY REFERENCE INTO THIS APPLICATION AND MADE A PART HEREOF.

NOTICE TO ALABAMA APPLICANTS: Any person who knowingly presents false information in an application for insurance is guilty of a crime and may be subject to restitution, fines, or confinement in prison.

NOTICE TO ARKANSAS APPLICANTS: Any person who knowingly presents false information in an application for insurance is guilty of a crime and may be subject to fines and confinement in prison.

NOTICE TO COLORADO APPLICANTS: It is unlawful to knowingly provide false, incomplete, or misleading facts or information to an insurance company for the purpose of defrauding or attempting to defraud the company.

NOTICE TO DISTRICT OF COLUMBIA APPLICANTS: Warning: it is a crime to provide false or misleading information to an insurer for the purpose of defrauding the insurer or any other person.

NOTICE TO FLORIDA APPLICANTS: Any person who knowingly and with intent to injure, defraud, or deceive any insurer files an application containing false information is guilty of a felony.

NOTICE TO HAWAII APPLICANTS: Presenting a fraudulent claim for payment of a loss or benefit is a crime punishable by fines or imprisonment, or both.

NOTICE TO KENTUCKY APPLICANTS: Any person who knowingly files an application containing materially false information commits a fraudulent insurance act, which is a crime.

NOTICE TO LOUISIANA APPLICANTS: Any person who knowingly presents false information in an application for insurance is guilty of a crime and may be subject to fines and confinement in prison.

NOTICE TO MAINE APPLICANTS: It is a crime to knowingly provide false, incomplete, or misleading information to an insurance company for the purpose of defrauding the company.

NOTICE TO MARYLAND APPLICANTS: Any person who knowingly or willfully presents false information in an application for insurance is guilty of a crime.

NOTICE TO NEW JERSEY APPLICANTS: Any person who includes false or misleading information on an application for an insurance policy is subject to criminal and civil penalties.

NOTICE TO NEW MEXICO APPLICANTS: Any person who knowingly presents false information in an application for insurance is guilty of a crime and may be subject to civil fines and criminal penalties.

NOTICE TO NEW YORK APPLICANTS: Any person who knowingly and with intent to defraud files an application containing materially false information commits a fraudulent insurance act.

NOTICE TO OHIO APPLICANTS: Any person who submits an application or claim containing a false or deceptive statement is guilty of insurance fraud.

NOTICE TO OKLAHOMA APPLICANTS: Any person who knowingly makes a claim for the proceeds of an insurance policy containing false information is guilty of a felony.

NOTICE TO OREGON APPLICANTS: Any person who knowingly submits an application or claim containing a false statement as to any material fact may be violating state law.

NOTICE TO PENNSYLVANIA APPLICANTS: Any person who knowingly files an application or statement of claim containing materially false information commits a fraudulent insurance act.

NOTICE TO RHODE ISLAND APPLICANTS: Any person who knowingly presents false information in an application for insurance is guilty of a crime.

NOTICE TO TENNESSEE APPLICANTS: It is a crime to knowingly provide false, incomplete, or misleading information to an insurance company for the purpose of defrauding the company.

NOTICE TO TEXAS APPLICANTS: Any person who knowingly presents a false or fraudulent claim for the payment of a loss is guilty of a crime.

NOTICE TO VERMONT APPLICANTS: Any person who knowingly presents a false statement in an application for insurance may be guilty of a criminal offense.

NOTICE TO VIRGINIA APPLICANTS: It is a crime to knowingly provide false, incomplete, or misleading information to an insurance company for the purpose of defrauding the company.

NOTICE TO WASHINGTON APPLICANTS: It is a crime to knowingly provide false, incomplete, or misleading information to an insurance company for the purpose of defrauding the company.

NOTICE TO WEST VIRGINIA APPLICANTS: Any person who knowingly presents false information in an application for insurance is guilty of a crime.

NOTICE TO ALL OTHER APPLICANTS: It is a crime to knowingly provide false, incomplete, or misleading information to an insurance company for the purpose of defrauding the company.

DECLARATION AND SIGNATURE

THE UNDERSIGNED AUTHORIZED REPRESENTATIVE HEREBY ACKNOWLEDGES THAT HE OR SHE IS MAKING THE REPRESENTATIONS IN THIS APPLICATION ON BEHALF OF THE APPLICANT AND ALL ENTITIES OR PERSONS PROPOSED FOR COVERAGE UNDER THE POLICY.

Signed: Ethan Mercer

Print Name: Ethan Mercer

Title: CFO
(President, CEO or CFO)

Date: 10/22/2025

APPENDIX

Change in Address? **No**

Certificate of Completion

Summary

Title	Executive Risk App - Allied World
File name	Executive Risk App - Allied World.pdf
Status	Completed
Document guid:	AXS-6JH9-KT42-PQ81-LM03
Number of pages	7
Number of e-signatures	1

Document History

2025-10-22 03:14:27 PM PDT	Signed by Ethan Mercer (emercer@apexsurface.com) IP 71.58.142.19
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2025-10-22 03:14:27 PM PDT	Electronic record and signature disclosure agreed by Ethan Mercer (emercer@apexsurface.com) IP 71.58.142.19
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